

		The case management conference is set for August 3, 2026 at 9:00 a.m. in Department C28. Plaintiff shall provide notice of this ruling.
56.	Nguyen v. Lucatero 2025-01450476	Defendant Vietnamese Buddhist Congregation Association's motion for summary judgment is GRANTED. Defendant has met its initial burden to show plaintiff Mai T. Nguyen's claims are without merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [same]; Civ. Code §3342 [strict liability only applies to owner]; <i>Wise v. Superior Court</i> (1990) 222 Cal.App.3d 1008, 1013 [elements of negligence]; <i>Yuzon v. Collins</i> (2004) 116 Cal.App.4th 149, 152 [landlord duty of care requires actual knowledge of dangerous propensities of dog]; SSUMF Nos 1-7; 11-13; 15.) Since the motion is unopposed, plaintiff has failed to meet her shifted burden to show any material triable issue. The court orders judgment in favor of Defendant Vietnamese Buddhist Congregation Association. Upon review of the docket, the court notes that there is a hearing on June 22, 2026 to address motions to be relieved as counsel for plaintiff. It appears to the court that attorney Hoan N. Nguyen's motion is moot, given the substitution of attorney form filed by Hoan N. Nguyen. (ROA 64). The court notes that, while filed on April 1, 2026, the form is signed as of October 30, 2025 and substituted Bobbi Bolton of Pacific Coast Injury Law Center as plaintiff's new counsel. As it relates to the motion to be relieved filed by Richard Kwak of Pacific Coast injury Law Center (ROA 57), it is unclear to the court whether Bobbi Bolton, Esq. (also of Pacific Coast injury Law Center) intends to continue representing plaintiff or whether Pacific Coast Injury Law Center seeks to be relieved as counsel—including relieving Bobbi Bolton. Given these uncertainties, plaintiff's counsel shall be prepared to discuss their intention concerning the motion to withdraw. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.

57.	Airgap Labs LLC v. Torres 2025-01477064	Defendants Issac Torres, Brett Stetzko and Vortek Solutions LLC's Demurrer to the First Amended Complaint ("FAC") is SUSTAINED in part and OVERRULED in part. <u>Defendants' Request for Judicial Notice</u> is GRANTED as to Exhibit A. First (Breach of Contract), Second (Breach of Implied Covenant of Good Faith and Fair Dealing), and Fifth (Inducing Breach of Contract) Breach of Contract The first, second and fifth causes of action are premised on the existence of a valid contract. All three causes of action allege that the AirGap Employee Handbook, which is attached as Exhibit A to the FAC, is a contract. However, the Handbook expressly states that it is not a contract. Courts have held that handbooks explicitly stating they are not intended to be a contract or "to otherwise create any legally enforceable obligations" cannot form the basis of a contract claim because it lacks mutual assent. (<i>Esparza v. Sand & Sea, Inc.</i> (2016) 2 Cal.App.5th 781, 789.) In <i>Mendoza v. Trans Valley Transport</i> (2022) 75 Cal.App.5th 748, the court found there was no valid agreement to arbitrate where the employee handbook in which the agreement was contained stated that the "handbook is designed for quick reference and general information and "[i]s not intended as a contract of employment and does not provide in detail all of the company's policies." (Id. at 782-788.) The Handbook in this case contains similar language. Section 1.1 of the alleged and purported contract, titled "Handbook Disclaimer" expressly states: "The contents of this handbook serve only as guidelines and supersede any prior handbook. Neither this handbook, nor any other policy or practice, creates an employment contract, or an implied or express promise of continued employment with the company." Further, Section 2.1 of the alleged contract, titled "At-Will Employment" states: "Nothing in this handbook may be construed as creating a promise of future benefits or a binding contract between Airgap Labs, LLC and any of its employees." This section also states that the policies in the handbook "may be amended, modified, or terminated at any time by Airgap Labs LLC..." Here, a reasonable interpretation of the introductory language is that it means exactly what it says – that the handbook serves only as guidelines and did not create an employment
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